GOVERNMENT OF INDIA
MINISTRY OF FINANCE
INCOME TAX DEPARTMENT
OFFICE OF THE INCOME TAX OFFICER
WARD 5(1), PUNE

To, SAKINA SHABBIR POONAWALA 585/86/87 Sachapir Street Shivaji Market Camp,Pune Cantt East S.O Pune City, Pune PUNE 411001,Maharashtra India	

PAN: **GLVPP7029G**	TY: **2024-25**	Dated: **26/10/2026**	DIN & Letter No : **ITBA/RCV/F/17/2026-27/1094860418(1)**

Sir/ Madam/ M/s,

Subject: Issue Letter

Sub: Application u/s 220(6) of the Income Tax Act, 1961 in the case of Sakina Shabbir Poonawala (PAN: GLVPP7029G) for A.Y 2024-25-reg.

Ref: Assessee's application dated 14/08/2026, received in this office on 09/10/2026.

Please refer to the above.

2. The assessee is an individual and had filed the return of income u/s. 139(1) of the Act for AY 2024-25 on 26/07/2024 declaring total income at Rs.6,35,550/-. Thereafter, the case was selected for compulsory scrutiny. Accordingly, notice u/s. 143(2) of the Income Tax Act was issued on 28.06.2025 and duly served upon the assessee. Accordingly, a notice u/s 143(2) of the Income-tax Act, 1961(hereinafter referred to as 'the Act') dated 28/06/2025 was issued to assessee and served through electronically. On the basis of the reply of the assessee and information available on records, the assessment completed u/s 143(3) read with section 144B of the Act on 03/03/2026, assessing total income at Rs. 64,86,785/- and raised net demand payable of Rs. 56,51,920/-. Being aggrieved with the above assessment order, the assessee has filed an appeal before CIT(A) and the same is pending till date.

3. To recover the demand, vide letter dated 03/08/2026, the assessee was requested to pay the outstanding demand. In response, the assessee has filed an application on 09/10/2026 and requested to grant stay of demand and waiver of

standard 20% payment till disposal of appeal.

4. The application for stay of demand in the case of the assessee is duly considered. On perusal of the application & details, it is seen that the assessee has not paid any amount and it is requested to keep the recovery proceedings in abeyance till disposal of the first appeal.

The demand raised in the assessment proceedings u/s. 143(3) r.w.s. 144B of the Act on merits of the case as the assessee failed to explained the issues raised during the course of assessment proceedings. Therefore, granting the stay on recovery of demand raised against the additions made during the assessment proceedings merely on the basis that the assessee in appeal before the Ld.CIT(A) is not tenable. Further, the assessee failed to explain the merits of the case and also failed to explain how the case fulfils the conditions for stay of demand laid down in circulars & instructions amended from time to time. Therefore, granting the stay on recovery of demand raised against the additions made during the assessment proceedings merely on the basis that the assessee in appeal before the Ld.CIT(A) is not tenable.

5. As per the guidelines of the Instruction No. 1914 of the CBDT dated 02/12/1993 as amended from time to time, provision for granting stay on recovery of demand by the Assessing Officer subject to payment of at least 20% of the taxes outstanding is made by the assessee concerned, and if the assessee's appeal is pending before the Ld.CIT(A). Thus the assessee case does not full the conditions laid down on the above instructions amended from time to time.

6. In view of the above facts & circumstances of the case, the application filed by the assessee for grant of stay of is hereby rejected. The assessee is once again requested to pay at least 20% of the total demand raised and apply for the stay on recovery of demand within 7 days of receipt of this letter.

RAKESH KUMAR
WARD 5(1), PUNE

(In case the document is digitally signed please refer Digital Signature at the bottom of the page)

Signature Not Verified

Digitally Signed.
Name: RAKESH KUMAR
Date: 26-Oct-2026 15:46:25
Location: PUNE